

Plaintiff shall provide legal support for her position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendants shall, 10 days before the continued hearing date, set above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended pleading/claim for damages before the date set forth above; or
- (3) file with the court a declaration stating how the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve.

The Court will not accept further briefing.

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CASE #	CASE NAME	HEARING NAME
CVME2401231	TARQUINI VS FOUR WINDS ENTERPRISES INC.	MOTION TO STRIKE

c GRANTED; NO OPPOSITION FILED

3.

CASE #	CASE NAME	HEARING NAME
CVME2500794	FOX VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: GRANTED

Award fees of \$13,095.00.

Costs were sought via memorandum of costs; Defendant did not file a motion to tax costs.

Plaintiff Sheila Fox brought this Song-Beverly action regarding a 2022 Chevy Trailblazer that had brake, radio and infotainment defects. The complaint, filed 1/17/25, asserts: (1) breach of implied warranty of merchantability; and (2) breach of express warranty. On 1/21/26, Plaintiff filed a notice of settlement.

Plaintiff moves for attorney's fees of \$19,994 plus a .1 multiplier of \$1,999.40, and costs of \$1,722.33, for a total of \$23,715.73. Plaintiff contends that Defendant refused to meet and confer about the fees. Defendant failed to make any formal settlement offers, requiring Plaintiff to litigate. Plaintiff asserts that the fees are reasonable. She argues that any challenge must be to specific entries.

Defendant contends that this was a streamlined case resolved under AB 1755, and nothing more than initial disclosures were provided when the case settled on October 24, 2025. It complains that the bulk of the fees sought relate to this motion and a non-existent motion to strike costs. It argues the court should deny the motion as untimely since the parties settled on 10/24/25. It otherwise challenges various entries. It contends the case does not warrant a multiplier. It requests the court strike costs as they are not reasonable.